

Court No. - 36

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sushil Dubey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

As prayed by Sri Rajesh Tripathi, learned counsel for the respondent, put up on 7.3.2011 as fresh.

Order Date :- 3.3.2011

Hsc/

Court No. - 37

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sushil Dubey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble R.K. Agrawal, J.

Hon'ble Bharati Sapru, J.

Shri Rajesh Tripathi has obtained instructions. He may file a counter affidavit within two weeks. Rejoinder affidavit may be filed within a week thereafter.

List on 4th of April, 2011.

Order Date :- 8.3.2011

L.F./5

Court No. - 36

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sushil Dubey

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

As prayed, list this case on 13.4.2011.

Order Date :- 4.4.2011

safi

Court No. - 36

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sushil Dubey

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

Sri Raj Shekhar Srivastava holding brief of Sri Rajesh Tripathi, learned counsel for the respondent nos.2 and 3, states that Counter Affidavit to be filed on behalf of the said respondents is under preparation and the same will be filed within a week. On his prayer the case is directed to be listed on 28.4.2011.

The case will be listed amongst the cases listed at the top of the cause list.

Order Date :- 20.4.2011

AKJ

Court No. - 36

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Sushil Dubey

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

Pursuant to the order dated 20.4.2011 the case is listed today.

Sri Rajesh Tripathi, learned counsel for the Respondent Nos. 2 and 3 states that even though instructions were received by him, Counter Affidavit, to be filed on behalf of the said Respondent, could not be finalized. As Shri Tripathi has already received instructions in the matter we are proceeding to consider the same and pass appropriate orders.

It is submitted by the learned counsel for the petitioner that the recovery certificate has been sent by the Respondent no.3 to the Collector Mainpuri (Respondent no.4) for recovery of the amount of assessment made in respect of the petitioner on account of the alleged theft of electricity, without complying with the mandatory requirement of the U.P..Electricity Supply Code 2005.

Shri Rajesh Tripathi, learned counsel for the Respondent Nos. 2 and 3 on the basis of the instructions received by him states that checking in the premises of the petitioner was made on 29.6.2008 and theft of electricity was allegedly detected. Provisional Assessment on account of the alleged theft of electricity was made in respect of the petitioner on 16.7.2008 and the same was sent to the petitioner by post. Shri Sushil Dubey, learned counsel for the petitioner states that the petitioner did not receive any such Provisional Assessment.

Shri Rajesh Tripathi, learned counsel for the Respondent Nos. 2 and 3 on the basis of the instructions received by him further states that as no objections were received from the petitioner, Provisional

Assessment was treated to be Final Assessment and Recovery Certificate was sent by the Respondent no.3 to the Collector, Mainpuri (Respondent no.4). However, on query made by the Court Sri Rajesh Tripathi states that no specific order for final assessment in respect of the petitioner was passed by the Respondent No.3 and the recovery certificate was sent treating the Provisional Assessment to be Final Assessment.

Shri Sushil Dubey, learned counsel for the petitioner refers to the provisions contained in sub-section 2 of Section 126 of the Electricity Act 2003 which requires that the order of Provisional Assessment shall be served upon the person concerned. Sub-Section 3 of Section 126 of the said Act requires that the Assessing Officer shall pass final order of assessment after affording reasonable opportunity of hearing to the person concerned. Section 127 of the Electricity Act 2003 gives right of appeal to the person aggrieved by the final order made under section 126 of the said Act.

It is submitted by Sri Sushil Dubey, learned counsel for the petitioner, as no final order of assessment was passed in the case of the petitioner, the petitioner has been deprived of his right to file appeal under section 127 of the Electricity Act, 2003.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the Respondent Nos. 1, 4 and 5 has been accepted by the learned Standing Counsel. Notice on behalf of the Respondent Nos. 2 and 3 has been accepted by Sri Rajesh Tripathi. Counter affidavit on behalf of the Respondent may be filed within 6 weeks. Rejoinder Affidavit can be filed by the next date fixed in the matter.

List this case on 19.7.2011 before the appropriate Bench.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the

parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner, pursuant to the Recovery Certificate dated 15.12.2010 (Annexure 1 to the writ petition) will remain stayed, provided within 4 weeks from today the petitioner deposits with the Respondent no.3 an amount of Rs. 90,000/-. The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In the event of default on the part of the petitioner in making the deposit as directed above, this interim order will stand automatically vacated.

Order Date :- 28.4.2011

Sh

Court No. - 38

Case :- WRIT - C No. - 10575 of 2011

Petitioner :- Sant Ram

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Sushil Dubey

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Ran Vijai Singh, J.

Hon'ble Daya Shankar Tripathi, J.

List has been revised. No one appears for the petitioners to press this writ petition. Learned Standing Counsel and Sri Baleshwar Chaturvedi, learned counsel appear for the respondents.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 21.12.2016

v.k.updh.